IN THE NATIONAL COMPANY LAW TRIBUNAL, DIVISION BENCH, CHENNAI

CA/922 & 922-A/CAA/2019

Under Sections 230 to 232 of the Companies Act, 2013

In the matter of *Scheme of Amalgamation*

of

M/s. HARITA SHEELA PRIVATE LIMITED

... Transferor Company

With

M/s. HARITA TRADE AND SERVICES PRIVATE LIMITED

... Transferee Company

And

Their Respective Shareholders and Creditors

Order delivered on 9th September, 2019

CORAM:

CH. MOHD SHARIEF TARIQ, MEMBER (JUDICIAL)
ANIL KUMAR B, MEMBER (TECHNICAL)

For Applicant(s): Mr. Pawan Jabakh, Counsel

ORDER

Per: **CH. MOHD SHARIEF TARIQ, MEMBER (JUDICIAL)**

1. Under consideration are Application Nos. CA/922 & 922-A/CAA/2019 filed under Sections 230 to 232 of the Companies Act, 2013. The prayer made is to

dispense with convening, holding and conducting of the meeting of Equity Shareholders in relation to the Transferor and Transferee Companies. Since both the Applications are pertaining to the same Scheme of Amalgamation, they are taken together to pass a common order.

2. ***M/s. Harita Sheela Private Limited [CA/922/CAA/2019]***

i. The Transferor Company viz., *M/s. Harita Sheela Private Limited* has 3 (three) Equity Shareholders. The list of Equity Shareholders is placed at page 105 of the typed set filed with the Application. The consent affidavits given by the three Equity Shareholders are placed at pages 106 – 111 of the typed set, filed with the Application, wherein it has been deposed that they do consent to dispense with the convening, holding and conducting the meeting of Equity Shareholders. Therefore, the meeting of the Equity

Shareholders of the *Transferor Company* is allowed to be *dispensed with.*

ii. There are no Secured Creditors in relation to the Transferor Company. The Certificate issued by the Chartered Accountants to this effect is placed at page 112 of the typed set filed with the Application.

iii. There are no Unsecured Creditors in relation to the Transferor Company. The Certificate issued by the Chartered Accountants to this effect is placed at page 113 of the typed set filed with the Application.

3. ***M/s. Harita Trade & Services Private Limited [CA/922-A/CAA/2019]***

i. The Transferee Company viz., *M/s. Harita Trade & Services Private Limited,* has 3 (three) Equity Shareholders. The list of Equity

Shareholders is placed at page 131 of the typed set filed with the Application. The consent affidavits given by the three Equity Shareholders are placed at pages 132 – 137 of the typed set, filed with the Application, wherein it has been deposed that they do consent to dispense with the convening, holding and conducting the meeting of Equity Shareholders. Therefore, the meeting of the Equity Shareholders of the *Transferee Company* is allowed to be *dispensed with.*

ii. There are no Secured Creditors in relation to the Transferee Company. The Certificate issued by the Chartered Accountants to this effect is placed at page 138 of the typed set filed with the Application.

iii. There are no Unsecured Creditors in relation to the Transferee Company. The Certificate issued by the Chartered Accountants to this effect

is placed at page 139 of the typed set filed with the Application.

4. The Registry is directed to issue notice to the concerned Regional Director, Ministry of Corporate Affairs, RoC Chennai and Income Tax Authorities including the Assessing Officer of the I.T. Circle in relation to the Applicant Companies separately, and also notice to OL in relation to the Transferor Company with the direction to appoint Chartered Accountants on his own for filing report. In case, the statutory authorities to whom the notice is issued are desirous of making any objection/representation, they may do so within 30 days from the date of receipt of the notice. In case no objection/representation is made, it shall be presumed that they/any of them have/has no objection/representation to make.

5. The Applicant Companies are directed to issue private notice to the said authorities/regulators by way

of speed post/hand delivery, having not less than 30 + 2 days before the date fixed for filing the Company petition(s). The proof of sending and effecting the service of notice upon them along with the newspaper publication shall be submitted with supporting affidavit to this Bench along with Company Petition(s).

6. The Applicant Companies are directed to effect publication separately in the newspapers one in English *"Business Standard"* (Chennai Edition) and another in vernacular *"Maalai Chudar", Tamil* (Chennai Edition) provided the said newspapers have wide circulation in the State of Tamilnadu, having not less than 30 + 2 days before filing the Company Petition(s). The Applicant Companies are further directed to upload the notice on their websites and display the notice on the notice board at its Registered Office. The Registry is also directed to display the notice, on the notice board of this Bench.

7. Accordingly, the Applications are **allowed**. The Applicant Companies are directed to present the Petition on or before 21.10.2019.

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ANIL KUMAR B
MEMBER (TECHNICAL)

-SD-
CH. MOHD. SHARIEF TARIQ
MEMBER (JUDICIAL)

RAYMOND